complaints policy

Version: 1.0 | Effective: | Review:

title: "Complaints Policy" effectiveDate: "" reviewDate: "" version: "1.0"

Policy Title: Complaints Policy Effective Date: [Insert Date] Review Date: [Insert Date – typically annually] Version: 1.0 Applies to: All staff, residents, relatives, advocates, and visitors at [INSERT CARE HOME NAME]

1. Policy Statement At [INSERT CARE HOME NAME], we are committed to delivering high-quality, person-centred care. We recognise the importance of listening to feedback and treating complaints as an opportunity to learn, improve, and strengthen trust in our service. We aim to ensure that: • All complaints are taken seriously • Complaints are dealt with promptly, fairly, and sensitively • People feel confident to raise concerns without fear of discrimination or reprisal • Learning from complaints leads to service improvements

2. Legal and Regulatory Framework This policy supports compliance with: • Regulation 16 of the Health and Social Care Act 2008 (Regulated Activities) Regulations 2014 • CQC Fundamental Standards • Local Authority complaints procedures (where applicable) • The Duty of Candour (Regulation 20)

3. Definition of a Complaint A complaint is any expression of dissatisfaction about any aspect of care, service, environment, or conduct at [INSERT CARE HOME NAME], whether spoken or written, and whether justified or not. Complaints may come from: • Residents • Relatives or carers • Visitors or members of the public • Advocates or professionals

4. Principles of Complaint Handling We are committed to: • Accessibility – making it easy for people to raise concerns • Transparency – providing clear information on how complaints are handled • Responsiveness – investigating and responding within appropriate timescales • Confidentiality – handling complaints with discretion and respecting privacy • Non-retaliation – ensuring no negative treatment of complainants • Learning – using complaints to improve services

5. How to Make a Complaint Complaints can be made: • Verbally – to any member of staff or to the Registered Manager • In writing – by letter, complaint form, or email • Anonymously – though this may limit our ability to respond A complaints leaflet and form are available at reception and on request.

6. Stages of the Complaints Process Stage 1 – Informal Resolution Many concerns can be resolved quickly through discussion. Staff are encouraged to listen, respond empathetically, and resolve issues promptly. If the complainant is satisfied with the outcome, no further action is needed, but the issue should still be recorded.

Stage 2 – Formal Complaint If a complaint cannot be resolved informally or is more serious, it should be escalated to the Registered Manager or designated Complaints Officer. Acknowledgement: • The complaint will be acknowledged in writing within 3 working days. Investigation: • A full investigation will be conducted by the manager or a nominated senior staff member. • The complainant will be kept informed of progress. Response: • A written response will be provided within 20 working days, unless an extension is agreed due to complexity. • The response will include findings, actions taken, and information on next steps if the complainant is not satisfied.

Stage 3 – External Review If the complainant remains dissatisfied, they may refer the matter to: Local Government and Social Care Ombudsman (LGSCO) Website: www.lgo.org.uk Phone: 0300 061 0614 Or if funding or placement is through the Local Authority, the relevant Adult Social Care team should also be contacted. If the complaint relates to regulated care, the Care Quality Commission (CQC) may be informed (though they do not investigate individual complaints): Care Quality Commission (CQC) Website: www.cqc.org.uk Phone: 03000 616161 Email: enquiries@cqc.org.uk

7. Recording and Monitoring • All complaints (formal and informal) will be recorded in a complaints log. • The log will include the date, nature of the complaint, outcome, and actions taken. • Regular reviews of complaint trends will be undertaken to identify service improvements.

8. Staff Responsibilities All staff must: • Listen to complaints with empathy and without judgement • Try to resolve concerns where appropriate • Escalate more serious concerns to a senior member of staff • Support complainants through the process • Participate in investigations if required

9. Advocacy and Support Residents and complainants may wish to be supported by an advocate or representative. Independent advocacy services will be made available if needed, especially where capacity or communication is an issue.

10. Confidentiality • All complaints will be handled in accordance with our Data Protection and Confidentiality Policy. • Only staff directly involved in handling the complaint will have access to information.

11. Unreasonable or Persistent Complaints If a complainant behaves in a way that is aggressive, abusive, or vexatious, the Registered Manager may take steps to manage communication appropriately, while still addressing the underlying concern.

12. Related Policies • Safeguarding Adults Policy • Duty of Candour Policy • Whistleblowing Policy • Record Keeping Policy • Data Protection and Confidentiality Policy

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